CHAPTER 4

EXECUTIVE

CHAPTER ESSENCE AT A GLANCE:
Analyze the parliamentary executive structure in India, powers and role of the President, Prime Ministerial leadership, Cabinet collective responsibility, and the permanent bureaucracy.

4 CORE PRINCIPLES TO UNDERSTAND FIRST

• **Typology of Executive Systems:** Executive systems vary globally: Parliamentary systems feature executive accountability to legislature with separate head of state and head of government; Presidential systems concentrate both roles in a directly elected president; Semi-Presidential systems divide executive power between a president and prime minister.

• **President of India as Constitutional Head:** The President serves as the nominal executive elected by an electoral college; while bound to act on the aid and advice of the Council of Ministers under Article 74, the President exercises crucial discretionary reserve powers during hung parliaments.

• **Prime Minister and Cabinet Governance:** The Prime Minister is the real executive head, leader of the majority party in Lok Sabha, and keystone of the Cabinet arch; under Article 75, the Council of Ministers functions under collective responsibility to the Lok Sabha.

• **Permanent Executive and Administrative Neutrality:** The civil services comprise recruited professional administrators chosen through competitive examinations by the Union Public Service Commission, tasked with executing government policies impartially irrespective of ruling political parties.

ESSENTIAL FORMULAS & GOVERNING EQUATIONS

$$\text{Executive Legitimacy} \Leftrightarrow \text{Council of Ministers} \leftrightarrow \text{Lok Sabha Majority Support}$$

Constitutional relationship binding executive tenure to legislative confidence

$$\text{Discretionary Reserve} \Rightarrow \{\text{Advice Reconsideration, Pocket Veto, Prime Minister Choice in Hung House}\}$$

Specific constitutional situations where the President acts on independent judgment

CRUCIAL EXAM PRECAUTIONS & VALUATION RUBRIC SECRETS

• **Alert:** Under Article 74(1), the President may ask the Council of Ministers to reconsider its advice, but if the Council returns the same advice, the President is constitutionally bound to accept it.

• **Alert:** Members of the civil service (permanent executive) must remain politically neutral and cannot take an active partisan role in political campaigns or party politics.

HIGH-YIELD CENTUM QUESTIONS & STEP-BY-STEP EXPLANATIONS

1. Distinguish between the political executive and the permanent executive in a democracy. [Score: 2 Marks]

Answer & Key Valuation Steps:

• **Political Executive:** Comprises elected ministers including the Prime Minister who make major policy decisions and hold office for a fixed legislative term. **[1 Mark]**

• **Permanent Executive:** Comprises career civil servants appointed on merit who remain in service until retirement age and execute policies neutrally. **[1 Mark]**

2. What is meant by collective responsibility of the Council of Ministers under Article 75? [Score: 3 Marks]

Answer & Key Valuation Steps:

• **Constitutional Principle:** The Council of Ministers is collectively responsible to the Lok Sabha, meaning the ministry stands or falls together as a single unit. **[1 Mark]**

• **Cabinet Solidarity:** All ministers must publicly defend Cabinet decisions; if a minister disagrees, they must resign rather than criticize government policy publicly. **[1 Mark]**

• **No-Confidence Consequence:** If the Lok Sabha passes a Vote of No-Confidence against the government, all ministers including the Prime Minister must resign immediately. **[1 Mark]**

3. Compare Parliamentary, Presidential, and Semi-Presidential systems of government with illustrative country examples. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. Parliamentary System (India, UK):** Prime Minister is head of government, monarch or president is formal head of state; executive is directly accountable to legislature. **[1.5 Marks]**

• **2. Presidential System (USA):** President is both head of state and head of government, directly elected by the people, and not accountable to the legislature for daily survival. **[1.5 Marks]**

• **3. Semi-Presidential System (France, Russia):** Features both a directly elected President and a Prime Minister responsible to the parliament, sharing day-to-day executive authority. **[1 Mark]**

4. Explain four situations where the President of India can exercise personal discretion. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. Reconsideration of Advice:** Under Article 74(1), the President can send back advice from the Council of Ministers once for reconsideration. **[1 Mark]**

• **2. Pocket Veto on Non-Money Bills:** The President can withhold assent by simply not acting on a bill for an indefinite period, as the Constitution sets no time limit. **[1 Mark]**

• **3. Appointing Prime Minister in Hung Parliament:** When no single political party or pre-poll alliance secures a clear majority, the President uses discretion to invite the leader most likely to command house confidence. **[1 Mark]**

• **4. Dissolution of Lok Sabha:** The President can refuse dissolution of the Lok Sabha requested by a Prime Minister who has lost majority confidence in the house. **[1 Mark]**

5. Discuss the position, powers, and role of the Prime Minister as the leader of the nation and head of government. [Score: 5 Marks]

Answer & Key Valuation Steps:

• **Keystone of Cabinet Arch:** The Prime Minister decides the composition of the ministry, allocates portfolios, presides over Cabinet meetings, and coordinates ministry operations. **[1 Mark]**

• **Leader of the House:** As leader of the majority party in Lok Sabha, the Prime Minister shapes the legislative agenda and articulates major government policies. **[1 Mark]**

• **Chief Communicator to President:** Under Article 78, acts as the primary communication link between the Council of Ministers and the President regarding national administration. **[1 Mark]**

• **National Leader and Foreign Policy Architect:** Represents the sovereign nation in international summits, manages foreign affairs, and commands the armed forces during crises. **[1 Mark]**

• **Impact of Coalition Era:** In coalition governments, the Prime Minister's discretion is constrained by coalition partners, shifting style from dominance to negotiation. **[1 Mark]**

6. Critically evaluate the role of the bureaucracy in policy implementation and explain why political neutrality is essential for civil servants. **[Score: 6 Marks]**

Answer & Key Valuation Steps:

• **Administrative Backbone:** The bureaucracy translates broad legislative enactments into specific operational policies, managing developmental schemes and routine administration. **[1 Mark]**

• **Policy Formulation Advice:** Senior civil servants provide institutional memory, technical expertise, and empirical data to assist elected ministers in drafting legislation. **[1 Mark]**

• **Merit-Based Recruitment:** Articles 315 to 323 establish the Union Public Service Commission and State PSCs to conduct competitive examinations ensuring meritocratic selection. **[1 Mark]**

• **Concept of Political Neutrality:** Civil servants must serve any legally elected government with equal dedication, maintaining professional objectivity regardless of political ideology. **[1 Mark]**

• **Danger of Committed Bureaucracy:** Politicization of civil services risks nepotism, institutional decay, erosion of public trust, and compromise of rule of law. **[1 Mark]**

• **Accountability Safeguards:** Civil servants are held accountable to elected ministers, parliamentary committees, the Comptroller and Auditor General, and citizen scrutiny. **[1 Mark]**